

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ROSELINA JIMENEZ and AARON JIMENEZ,

SUMMONS

Plaintiff,

Index No.:

-against-

The basis of venue is:

Location of the incident

THE CITY OF NEW YORK, POLICE OFFICER JUSTIN HENDERSON, Tax No. 951812, POLICE OFFICER GUSTAVO OCHOA, Shield No. 12454, POLICE OFFICER LUIS P. MARTE, Shield No. 024133, SERGEANT GABRIEL OTERO, Tax No. 913450, LIEUTENANT ALEXANDER ROJAS, Tax No. 916589, SERGEANT ANTHONY LOMBARDO, Tax No. 942072, and POLICE OFFICERS JOHN DOES # 1-10 (names and numbers of whom are unknown at present),

Plaintiff designates Bronx County as the place of trial.

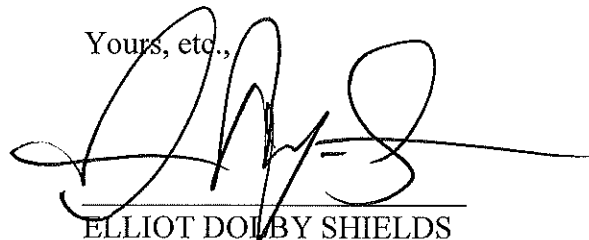
Defendants.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 5, 2018

Yours, etc.,



ELLIOT DOLBY SHIELDS

Attorney for Plaintiff

192 Lexington Ave, Suite 802

New York, New York 10016

(585) 749-2089

CITY OF NEW YORK CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

POLICE OFFICER JUSTIN HENDERSON, Tax No. 951812, SRG 2, 1278 Sedgwick Avenue, Bronx, New York 10452

POLICE OFFICER GUSTAVO OCHOA, Shield No. 12454, 44th Precinct, 2 East 169 Street,

Bronx, New York 10452

POLICE OFFICER LUIS P. MARTE, Shield No. 024133, 44th Precinct, 2 East 169 Street, Bronx, New York, 10452

SERGEANT GABRIEL OTERO, Tax No. 913450, SRG 1, 524 West 42nd Street, New York, New York, 10036

SERGEANT ANTHONY LOMBARDO, Tax No. 942072, 43rd Precinct, 900 Fteley Ave., Bronx, New York

LIEUTENANT ALEXANGER ROJAS, Tax No. 916589, 1 Police Plaza, New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ROSELINA JIMENEZ and AARON JIMENEZ,

Plaintiff,

-against-

**VERIFIED COMPLAINT and
DEMAND FOR A JURY TRIAL**

Index No.:

THE CITY OF NEW YORK, POLICE OFFICER
JUSTIN HENDERSON, Tax No. 951812, POLICE
OFFICER GUSTAVO OCHOA, Shield No. 12454,
POLICE OFFICER LUIS P. MARTE, Shield No. 024133,
SERGEANT GABRIEL OTERO, Tax No. 913450,
LIEUTENANT ALEXANDER ROJAS, Tax No. 916589,
SERGEANT ANTHONY LOMBARDO, Tax No.
942072, and POLICE OFFICERS JOHN DOES # 1-10
(names and numbers of whom are unknown at present),

Defendants.

-----X

Plaintiffs, **ROSELINA JIMENEZ and AARON JIMENEZ**, by their attorneys, ROTH & ROTH, LLP, as and for their Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiffs' rights under the First, Fourth, and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. §§ 1983 and 1988, and under the laws of the State of New York. Plaintiffs seek compensatory damages, punitive damages and attorney's fees.

PARTIES

2. Plaintiff, AARON JIMENEZ, is a citizen of the United States and a resident of the County of the Bronx, State of New York.
3. Plaintiff, ROSALINA JIMENEZ, is a citizen of the United States and a resident of the County of the Bronx, State of New York.
4. Defendant THE CITY OF NEW YORK ("CITY") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant CITY assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

5. NYPD Officer ("P.O.") JUSTIN HENDERSON ("HENDERSON") (Shield No. 6824),

No. 913450), and JOHN DOES # 1–10 (hereinafter “individual NYPD defendants” or “defendant NYPD officers”) are and were at all times relevant herein, officers, employees and agents of the NYPD.

6. The individual NYPD defendants are being sued in their individual and official capacities.
7. NYPD SERGEANT GABRIEL OTERO (“OTERO”), (Tax No. 913450), LIEUTENANT ROJAS (“ROJAS”) (Tax No. 916589), and SERGEANT ANTHONY LOMBARDO (“LOMBARDO”) (Tax No. 942072) (hereinafter “supervisory defendants”) are and were at all times relevant herein, officers, employees and agents of the NYPD.
8. The individual NYPD defendants and supervisory defendants hereinafter collectively referred to as “defendant police officers.”
9. At all times relevant herein, the defendant police officers were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.
10. The acts of the defendant police officers hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiffs’ rights.
11. At all relevant times, the defendant police officers were engaged in joint ventures, assisting each other in performing the various actions described herein and lending their physical presence in support and the authority of their offices to one another.
12. Plaintiffs in furtherance of their State causes of action filed a timely Notices of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50. The Notices of Claim were filed on October 13, 2017.
13. More than thirty (30) days have elapsed since service of said Notices of Claim were filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.
14. This action is being brought within a year and 90 days of the event giving rise to plaintiffs’ State causes of action.

STATEMENT OF FACTS

15. On April 19, 2015, at approximately 2:30 a.m., plaintiff ROSELINA JIMENEZ called 911 to request police assistance for her and her husband, plaintiff AARON JIMENEZ, because they were being threatened with physical violence by approximately four employees of a restaurant called Sal Y Pimienta (the “restaurant”), who had surrounded Mr. Jimenez in the street in the vicinity of 1434 Ogden Avenue, Bronx, New York.
16. Mrs. JIMENEZ informed the approximately four Sal Y Pimienta employees and her husband that she had called 911 and that the police were on their way.
17. Nevertheless, the approximately four employees of Sal Y Pimienta continued to surround

18. To protect himself and Mrs. JIMENEZ, Mr. JIMENEZ removed a small shovel from the trunk of his car.
19. At no point did Mr. JIMENEZ threaten to strike any of the Sal Y Pimienta employees with the shovel, nor did he actually strike any of them with the shovel, or commit any other criminal act.
20. At no point did any of the restaurant employees inform the NYPD that Mr. JIMENEZ threatened to strike anyone with the shovel, that he had struck anyone with the shovel, or that he had committed any other criminal act.
21. At no point did Mr. JIMENEZ threaten to strike any NYPD officers with the shovel, nor did he actually strike any of them with the shovel, or commit any other criminal act.
22. Shortly after Mrs. JIMENEZ called 911, defendants OCHOA and HENDERSON arrived at the scene in a marked NYPD vehicle.
23. When Defendants OCHOA and HENDERSON arrived at the scene, the approximately four restaurant employees were still surrounding Mr. JIMENEZ.
24. Defendant OCHOA exited the vehicle with his firearm drawn and pointed at Mr. JIMENEZ.
25. Mr. JIMENEZ informed the officers that the four restaurant employees were threatening him and his wife with physical harm and he was in fear for his life.
26. Defendants OCHOA and HENDERSON informed Mr. JIMENEZ that he had nothing to fear because they were the police and so the restaurant employees could not harm them.
27. OCHOA and HENDERSON asked Mr. JIMENEZ to put down the shovel and Mr. JIMENEZ complied and placed the shovel in the trunk of his vehicle.
28. The defendant police officers did not observe Mr. JIMENEZ committing any criminal act.
29. The defendant police officers did not possess a warrant to search or arrest Mr. JIMENEZ.
30. The defendant police officers had not been provided with any information that would suggest that Plaintiffs Mr. or Mrs. JIMENEZ were engaged in any criminal activity.
31. Nevertheless, defendants OCHOA and HENDERSON rushed upon Mr. JIMENEZ, seized him, and pulled him arms behind his back to place handcuffs on his wrists.
32. Mr. JIMENEZ did not resist the defendant police officers.
33. Mr. JIMENEZ told defendants OCHOA and HENDERSON that he was the victim and asked why he was being arrested.
34. While defendant HENDERSON held Mr. JIMENEZ from behind, defendant OCHOA repeatedly punched Mr. JIMENEZ about his body.
35. Defendants OCHOA and HENDERSON threw Mr. JIMENEZ onto the ground in a violent and aggressive manner.

36. As a result of being thrown onto the ground, Mr. JIMENEZ's face and head to slammed into the ground.
37. As a result of the actions of defendants OCHOA and HENDERSON, Mr. Jimenez was caused to suffer severe pain and serious physical injuries.
38. The force used against Mr. JIMENEZ by OCHOA and HENDERSON was in violation of the NYPD's internal policies.
39. When defendants OCHOA and HENDERSON grabbed Mr. JIMENEZ, plaintiff Mrs. JIMENEZ began recording the incident from a safe distance on her cell phone.
40. At no time did Mrs. JIMENEZ's recording of defendants OCHOA and HENDERSON's interaction with Mr. JIMINEZ interfere with the officers' arrest of Mr. JIMENEZ.
41. At no time during Mrs. JIMENEZ's recording of defendants OCHOA and HENDERSON's interaction with Mr. JIMINEZ did Mrs. JIMENEZ make any physical contact with either defendant OCHOA or HENDERSON.
42. Mrs. JIMENEZ recorded defendant OCHOA punch Mr. JIMENEZ multiple times without justification as defendant HENDERSON held Mr. JIMENEZ by his arms from behind.
43. Mrs. JIMENEZ recorded defendants OCHOA and HENDERSON throw Mr. JIMENEZ onto the ground and slam his head into the ground.
44. While Mrs. JIMENEZ was recording, defendant OCHOA informed her that it was unlawful for her to record them and he attempted to seize her cell phone.
45. Mrs. JIMENEZ recorded defendant OCHOA inform her that it was unlawful for her to record them and his attempt to seize her cell phone.
46. OCHOA's statement to Mrs. JIMENEZ that she was not allowed to record the officers was in violation of clearly established law and the NYPD's internal policies.
47. At or around this time, numerous additional defendant NYPD officers arrived at the scene, including defendants MARTE and ROJAS.
48. The defendant police officers did not observe Mrs. JIMENEZ committing any criminal act.
49. The defendant police officers did not possess a warrant to search or arrest Mrs. JIMENEZ.
50. The defendant police officers had not been provided with any information that would suggest that Mrs. JIMENEZ was engaged in any criminal activity.
51. Nevertheless, a defendant police officer rushed upon Mrs. JIMENEZ, punched her in the face, and seized her cell phone.
52. The defendant police officer who rushed upon Mrs. JIMENEZ, punched her in the face, and seized her cell phone had a bald head, was approximately six feet tall, and had "husky" build / was overweight (approximately 225 to 240 pounds).

53. The defendant police officer who rushed upon Mrs. JIMENEZ, punched her in the face, and seized her cell phone is believed to be defendant MARTE.
54. Mrs. JIMENEZ recorded defendant MARTE and/or a John Doe Police Officer punch her in the face and seize her cell phone.
55. Defendant MARTE and other defendant police officers then placed Mrs. JIMENEZ in a headlock, threw her on the ground, handcuffed her, and placed her under arrest.
56. The force used against Mrs. JIMENEZ by MARTE and/or other defendant police officers was in violation of the NYPD's internal policies.
57. Mrs. JIMENEZ suffered severe pain and physical injuries as a result of being punched in the face and thrown on the ground by the defendant police officers.
58. The defendant police officers used force against Mrs. Jimenez, including punching her in the face and throwing her to the ground, in retaliation for Mrs. Jimenez exercising her First Amendment right to record the defendant NYPD officers' interaction with her husband.
59. Mrs. JIMENEZ was arrested in retaliation for exercising her First Amendment right to record the defendant NYPD officers' interaction with her husband.
60. The defendant police officers intentionally destroyed the cell phone and video, thus spoliating the evidence of their unlawful conduct.
61. While Mr. JIMENEZ was handcuffed on the ground under the control of several defendant police officers, the defendant police officers, including but not limited to OCHOA, HENDERSON, MARTE, and ROJAS struck him in the head and body numerous times.
62. While Mr. JIMENEZ was handcuffed on the ground under the control of several defendant police officers, a defendant police officer repeatedly struck Mr. Jimenez in the head with his knee, causing Mr. Jimenez's face and head to repeatedly slam into the ground with a great amount of force.
63. As a result of the defendant police officers repeatedly striking him in the head while he was handcuffed on the ground, Mr. JIMENEZ suffered serious physical injuries.
64. The John Doe Defendant Police Officers 1 through 10 and defendant Sergeant ROJAS responded to the scene and were present throughout the assault and arrest of Mr. and Mrs. Jimenez, and had the time and access to intervene to stop and/or prevent the unlawful use of excessive force against plaintiffs, but chose not to; this includes the unlawful force used against Mr. Jimenez after he was handcuffed and was on the ground being struck in the head numerous times by the defendant police officers; and the unlawful force used against Mrs. Jimenez when she was punched in the face and thrown onto the ground.
65. Defendant Sergeant ROJAS knew that the defendant police officers, including OCHOA, HENDERSON, and MARTE used force against Mr. and Mrs. Jimenez without justification and in violation of the NYPD's internal policies.

66. Defendant Sergeant ROJAS knew that the Mrs. Jimenez's cell phone was seized and that

that it showed the defendant police officers falsely arresting and using force against plaintiffs without justification and in violation of the NYPD's internal policies.

67. Defendant Sergeant ROJAS used force against Mr. and Mrs. Jimenez without justification and in violation of the NYPD's internal policies.
68. Defendant Sergeant ROJAS knew that neither plaintiff had assaulted OCHOA or committed any criminal act.
69. Defendant Sergeant ROJAS knew that the defendant police officers lacked reasonable or probable cause to arrest either plaintiff.
70. Nevertheless, defendant Sergeant ROJAS approved the false arrest of both plaintiffs.
71. Defendant ROJAS conspired with OCHOA, HENDERSON, MARTE and John Does 1 through 10 to falsely accuse plaintiffs of both assaulting defendant OCHOA, and to falsely claim that plaintiffs caused OCHOA to suffer physical injuries, in order to conceal the defendant NYPD officers' false arrest and use of excessive force against plaintiffs.
72. Plaintiff ROSALINA JIMENEZ's cell phone was never returned to her, nor was it listed on her property voucher or any of her other arrest paperwork.
73. The defendant police officers imprisoned Mr. and Mrs. JIMENEZ in the back of separate police vehicles against their will and transported them to the 44th Precinct.
74. When they arrived at the 44th Precinct, Mr. and Mrs. JIMENEZ immediately complained of their physical injuries and requested medical attention, but the defendant police officers refused to provide either plaintiff with medical attention.
75. The defendant police officers denied needed medical treatment to plaintiffs by threatening them with extended pre-arraignment incarceration as a condition of receiving needed medical treatment, which constituted deliberate disregard towards their serious medical needs and the substantial risk of serious harm they faced.
76. While at the 44th Precinct, the defendant police officers loudly bragged among themselves and to other officers, including to defendants OTERO and LOMBARDO, about punching plaintiff Mrs. JIMENEZ in the face and stealing her cell phone in retaliation for her recording defendants OCHOA and HENDERSON using excessive force against Mr. JIMENEZ.
77. Defendants OTERO and LOMBARDO knew that Mrs. JIMENEZ was punched in the face and arrested in retaliation for recording defendants OCHOA and HENDERSON using unlawful and excessive force against Mr. JIMENEZ.
78. Defendants OTERO and LOMBARDO knew that Mrs. JIMENEZ's cell phone contained a recording of defendants OCHOA and HENDERSON using unlawful and excessive force against Mr. JIMENEZ.
79. Plaintiff ROSALINA JIMENEZ's cell phone was never returned to her, nor was it listed on her property voucher or any of her other arrest paperwork.

- This is a copy of a pleading filed electronically pursuant to New York State court rules (22 NYCRR §202.5-b)(d)(3)(i)) which, at the time of filing, did not contain the court's electronic filing system and had not yet been reviewed and approved by the County Clerk. Because court rules (22 NYCRR §202.5[d]) authorize the County Clerk to reject filings for various reasons, readers should be aware that documents bearing this legend may not have been accepted for filing by the County Clerk.

91. After being forced to appear in Bronx criminal court on approximately 15-20 occasions, on October 11, 2017, all charges against Mr. and Mrs. JIMENEZ were dismissed and sealed when the Court granted the motion of the Bronx District Attorney's Office to dismiss all charges against plaintiffs.
92. The Bronx District Attorney's Office moved to dismiss all charges against Mr. and Mrs. JIMENEZ because they lacked sufficient evidence to support reasonable or probable cause to prosecute plaintiffs for any crime or violation.
93. Defendants HENDERSON, OCHOA, MARTE, ROJAS, and John Does 1 through 10 either directly participated in the false arrest and use of excessive force of against plaintiffs, or failed to intervene to prevent said constitutional violations, despite being present and having the time and opportunity to prevent said constitutional violations.
94. Defendants OTERO and LOMBARDO, who held the rank of Sergeant, supervised HENDERSON, OCHOA, MARTE, and John Does 1 through 10, and approved of, oversaw, and otherwise participated in the use of force, false arrest, fabrication and destruction of evidence, and malicious prosecution of the plaintiffs.
95. Defendant ROJAS, who held the rank of Lieutenant, supervised OTERO, LOMBARDO, HENDERSON, OCHOA, MARTE, and John Does 1 through 10, and approved of, oversaw, and otherwise participated in the use of force, false arrest, fabrication and destruction of evidence, and malicious prosecution of the plaintiffs.
96. After plaintiffs were released from custody, they sought medical treatment for their injuries at Mount Sinai St. Luke's Emergency Hospital.
97. As a result of the brutal beating by the defendant NYPD officers and slamming his head numerous times into the ground, Mr. JIMENEZ suffered severe physical injuries, including but not limited to bruising to his head, body and wrists, and cuts on his face that left permanent scarring.
98. As a result of the brutal beating by the defendant NYPD officers, Mrs. JIMENEZ suffered severe physical injuries, including but not limited to bruising to her head, body and wrists.
99. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the falsification of evidence by police officers to justify the arrest and prosecution of innocent individuals, their use of excessive force, and the City's failure to discipline officers who fabricate evidence, destroy evidence, and use excessive force.
100. The aforesaid event is not an isolated incident. The defendant CITY is aware (from lawsuits, notices of claim, complaints filed with the NYPD's Internal Affairs Bureau, the CITY's Civilian Complaint Review Board, and media coverage) that many NYPD officers, including the defendants, are not disciplined following incidents where the NYPD is aware they have fabricated evidence, gave perjured testimony, and/or used excessive force.¹

¹ See, e.g., Kendall Taggart and Mike Hayes, *Secret NYPD Files: Officers Can Lie And Brutally Beat People—And*

- N.Y. Times (March 18, 2018), available at: <https://www.nytimes.com/2018/03/18/nyregion/testilying-police->

112. All of the false charges defendant MARTE initiated against Laura Polanco were dismissed in their entirety.
113. Upon information and belief, defendant MARTE was not disciplined as a result of the excessive force he used against Laura Polanco.
114. The failure of the CITY and NYPD to discipline MARTE following his assault of Laura Polanco was not isolated, but instead part of a continuing custom and practice of the defendant CITY and NYPD of failing to discipline officers who use excessive force and lie in their paperwork to cover up their unconstitutional actions.
115. The failure of the CITY and the NYPD to discipline defendant MARTE for assaulting Laura Polanco, including punching her in the face and causing her to suffer a fractured rib, was a direct and proximate cause of plaintiffs' injuries and constitutional deprivations as described herein.
116. Moreover, defendant CITY was aware prior to the incident that the individual defendants had repeatedly fabricated evidence and used excessive force, but had failed to discipline or otherwise take any corrective actions against the defendant NYPD officers.
117. Moreover, defendant CITY was aware prior to the incident that the supervisory defendants had repeatedly approved and directly participated in the fabrication of evidence by defendant NYPD officers and other officers, and used excessive force, but had failed to discipline or otherwise take any corrective actions against the supervisory defendants.
118. Moreover, defendant CITY was aware prior to the incident that defendant NYPD officers and supervisory defendants lacked the objectivity, temperament, maturity, discretion and disposition to be employed as police officers. Despite such notice, defendant CITY retained these officers and failed to adequately train and supervise them.
119. Upon information and belief, none of the defendant NYPD officers have been disciplined as a result of their unlawful arrest, use of excessive force, fabrication of evidence, destruction and spoliation of evidence, and malicious prosecution of plaintiffs.
120. For example, as a result of the defendant CITY and NYPD's failure to discipline HENDERSON, he falsely arrested, assaulted, battered, and used excessive force on a young man named Jeremie C. Xavier on January 8, 2017, causing him to suffer severe injuries.
121. During all the foregoing wrongful acts committed against plaintiffs, not one of the defendant NYPD officers or supervisory defendants intervened on plaintiffs' behalf to prevent the violation of their constitutional rights, despite having realistic opportunities to do so.
122. Because of the foregoing, plaintiffs sustained, *inter alia*, physical pain, permanent physical injuries, mental injuries, emotional distress, embarrassment, humiliation, lost income, loss of liberty, and deprivation of their common law and constitutional rights.
123. Because of the foregoing, plaintiffs demand judgment against defendants in an amount of money to be determined at trial.

PLAINTIFFS' INJURIES AND DAMAGES

124. As a direct and proximate consequence of the aforementioned actions by the defendants, plaintiffs:

- a. Suffered over 2 1/2 years of malicious prosecution;
- b. Suffered physical injuries and physical sickness;
- c. Were subjected to degrading, dehumanizing and emotionally destructive conditions;
- d. Suffered and continues to suffer mental and emotional distress and harm;
- e. Were denied numerous job opportunities;
- f. Were denied apartment rental opportunities;
- g. Were publicly shamed, disgraced, ridiculed and humiliated and suffered damage to reputation;
- h. Had to pay and incurred debts for the costs of their legal defense;
- i. Lost substantial employment income and permanent impairment of earning power; and
- j. Incurred other items of attendant damages.

FIRST CLAIM FOR RELIEF
DEPRIVATION RIGHTS UNDER 42 U.S.C. §§ 1981 and 1983
(Aaron & Roselina Jimenez against all defendants)

125. Plaintiffs repeat, reiterate and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

126. All of the aforementioned acts of the Defendant CITY, and the Defendant POLICE OFFICERS and their agents, servants and employees ("Defendants"), were carried out under the color of state law.

127. All of the foregoing acts by Defendants deprived Plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from seizure and arrest not based upon probable cause;
- c. To freedom from being subjected to false criminal charges by the police;
- d. To freedom from fabrication of evidence;
- e. To freedom from destruction of evidence;
- f. To freedom from excessive force;
- g. To freedom from retaliatory prosecution;
- h. To freedom from abuse of process; and
- i. To freedom of speech and expression.

128. All of the aforementioned acts deprived Plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

129. The acts complained of were carried out by the aforementioned individual NYPD defendants in their capacities as police officers with all of the actual and/or apparent

130. The acts complained of were carried out by the aforementioned individual NYPD defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendant CITY and the RPD, all under the supervision of ranking officers of said department.
131. As a result of the above constitutionally impermissible conduct, Plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ were caused to suffer personal injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damage to their reputation and standing within their community.
132. Accordingly, Plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ demand judgment against Defendants in a sum of money to be determined at trial.
133. Defendant THE CITY and the NYPD are responsible for the actions of their employees under the doctrine of *Monell v. City of New York Department of Social Services*, 436 U.S. 658 (1978).
134. As a result of Defendants' impermissible conduct, Plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ were injured and harmed.
135. As a result, Plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ seek compensation in an amount to be determined at trial.

SECOND CLAIM FOR RELIEF
FALSE ARREST / UNLAWFUL IMPRISONMENT UNDER 42 U.S.C. § 1983
(Aaron Jimenez against all defendants)

136. Plaintiff AARON JIMENEZ repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
137. One or more of the defendant police officers, including but not limited to defendants OCHOA, HENDERSON, MARTE and ROJAS, handcuffed and arrested Plaintiff AARON JIMENEZ.
138. The arrest was made in the absence of a warrant for the arrests.
139. The arrest was made in the absence of probable cause for the arrests.
140. The defendant police officers arrested plaintiff AARON JIMENEZ without having exigent circumstances for doing so.
141. There was no other authority for the arrest of plaintiff AARON JIMENEZ.
142. Plaintiff AARON JIMENEZ was conscious of the arrest.
143. Plaintiff AARON JIMENEZ did not consent to the arrest.
144. As a result, plaintiff AARON JIMENEZ was damaged, harmed and injured, and seeks compensation in an amount to be determined at trial.

THIRD CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983
(Aaron Jimenez against all defendants)

145. Plaintiff AARON JIMENEZ repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
146. The defendant police officers, despite knowing that probable cause did not exist to arrest and prosecute Mr. JIMENEZ for assaulting OCHOA or for any other crime, defendants fabricated and falsified evidence, individually and in concert, to cause Mr. JIMENEZ to be wrongfully arrested and prosecuted for those crimes.
147. The defendant police officers lacked probable cause to initiate the prosecution of Mr. JIMENEZ and the prosecution of Mr. JIMENEZ was procured by fraud, perjury, and the fabrication and suppression of evidence.
148. False and fabricated evidence was given by defendant police officers to the Bronx County District Attorney's Office.
149. The defendant police officers knew or were deliberately and recklessly indifferent to the truth that probable cause did not exist to arrest and prosecute Mr. JIMENEZ, including but not limited to the fact that the defendant NYPD officers fabricated their accounts of their interactions with Mr. JIMENEZ in charging paperwork.
150. The defendant police officers prosecuted Mr. JIMENEZ regardless of the fact that they possessed evidence that he was innocent and had not committed any crime.
151. The defendant police officers' conduct was critical to the continued prosecution of Mr. JIMENEZ and they knew, or in the absence of their deliberate and reckless indifference, should have known would cause Mr. JIMENEZ's prosecution to continue.
152. On October 11, 2017, the prosecution terminated in Mr. JIMENEZ's favor when the Court granted the motion of the Bronx County District Attorney's Office to dismiss all charges against him.
153. The defendant police officers' actions to deprive Mr. JIMENEZ of his liberty without probable cause were in violation of clearly established constitutional law, and no reasonable police officer in 2015 to 2017 would have believed that the defendants' actions were lawful.
154. As a direct and proximate result of the defendant police officers' actions, Mr. JIMENEZ was wrongly prosecuted for two and a half years and suffered the other grievous and continuing injuries and damages as set forth above.
155. Accordingly, plaintiff Mr. JIMENEZ demands judgment against defendants in a sum of money to be determined at trial.

FOURTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER NEW YORK STATE LAW
(Aaron Jimenez against all defendants)

157. By the actions described above, each and all of the defendant police officers, jointly and severally, acting in concert with each other and with additional persons for whose acts they are liable, initiated, continued and/or caused the initiation or continuation of criminal proceedings against Plaintiff Mr. Jimenez.
158. The criminal proceedings terminated in Plaintiff Mr. Jimenez's favor.
159. There was no probable cause for the commencement or the continuation of the criminal proceedings.
160. The defendant police officers and supervisory defendants acted with actual malice.
161. The defendant police officers and supervisory defendants were at all times agents, servants, and employees acting within the scope of their employment by the Defendant City and the NYPD, which are therefore responsible for their conduct.
162. The Defendant City, as the employer of the defendant police officers, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CLAIM FOR RELIEF
DENIAL OF THE RIGHT TO A FAIR TRIAL 42 U.S.C. § 1983
(Aaron Jimenez against all defendants)

163. Plaintiff AARON JIMENEZ repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
164. By deliberately manufacturing false evidence against Mr. JIMENEZ, including police reports containing the defendant NYPD officers' own fabricated and falsified accounts that Mr. JIMENEZ had committed crimes and/or offenses, including that he had struck OCHOA in the face with an open hand, and forwarding that fabricated evidence to prosecutors, the defendant NYPD officers caused Plaintiff Mr. JIMENEZ to be arrested, detained, charged, and prosecuted, in violation of Plaintiff's rights, pursuant to the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, to due process of law and to a fair trial, and are liable to Plaintiff under 42 U.S.C. § 1983, for compensatory and punitive damages.
165. Accordingly, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

SIXTH CLAIM FOR RELIEF
MALICIOUS ABUSE OF PROCESS under 42 U.S.C. § 1983
(Aaron Jimenez against all defendants)

166. Plaintiff AARON JIMENEZ repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
167. Defendants issued criminal process against plaintiff Aaron Jimenez by causing his arrest and prosecution in Bronx Criminal Court.

168. Defendants caused plaintiff Aaron Jimenez to be arrested and prosecuted in order to

avoid discipline for their abuse of authority and acts of brutality, and thereby violated plaintiff Aaron Jimenez's right to be free from malicious abuse of process.

169. Accordingly, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

SEVENTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983
(Aaron Jimenez against all defendants)

170. Plaintiff AARON JIMENEZ repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

171. Defendants roughly seized and handcuffed plaintiff AARON JIMENEZ without probable cause for his arrest.

172. Defendants grabbed plaintiff AARON JIMENEZ, forcefully pulled him arms behind his back, and handcuffed him in an unreasonably tight manner without probable cause for his arrest, punched him in the body numerous times, threw him face-first onto the ground, struck him about the head and body, and then kned him in the back of the head causing his head and face to slam into the ground multiple times, in the absence of need for such action and force.

173. The level of force employed by Defendants against plaintiff AARON JIMENEZ was objectively unreasonable.

174. The force employed by Defendants against plaintiff AARON JIMENEZ did not advance any proper governmental objective.

175. As a result of the aforementioned conduct, plaintiff AARON JIMENEZ suffered and sustained serious and permanent physical injuries.

176. As a result of Defendants' impermissible conduct, plaintiff AARON JIMENEZ demands judgment against defendants in a sum of money to be determined at trial.

EIGHTH CLAIM FOR RELIEF
DELIBERATE INDIFFERENCE TO SERIOUS MEDICAL NEEDS
(Aaron Jimenez against all defendants)

177. Plaintiff AARON JIMENEZ repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

178. The Defendant CITY OF NEW YORK and the Defendant Police Officers have acted under color of law to deprive Plaintiff AARON JIMENEZ of his civil, constitutional and statutory rights to due process of law pursuant to the Fourth and Fourteenth Amendments of the United States Constitution and are liable to Plaintiff AARON JIMENEZ under 42 USC §1983.

179. In response to Plaintiff AARON JIMENEZ informing numerous defendant police officers that he was in severe pain and that he required medical treatment, one or more defendant police officers threatened Plaintiff AARON JIMENEZ that if he wanted to receive medical treatment, it would increase his time in pre-arraignment incarceration by 24-36 hours.

180. The Defendant POLICE OFFICERS constructively denied needed medical treatment to Plaintiff AARON JIMENEZ by threatening him with extended pre-arraignment incarceration as a condition of receiving needed medical treatment, which constituted deliberate disregard towards Plaintiff AARON JIMENEZ's serious medical needs and the substantial risk of serious harm he faced.
181. Plaintiff AARON JIMENEZ was not otherwise provided with an opportunity to receive medical attention.
182. Because Plaintiff AARON JIMENEZ was refused immediate medical treatment while he was in custody, he suffered from extreme pain and his physical injuries were worsened.
183. Upon information and belief, plaintiff AARON JIMENEZ's serious physical injuries were exacerbated by the defendant POLICE OFFICERS refusal to take plaintiff AARON JIMENEZ for immediate medical treatment.
184. Plaintiff AARON JIMENEZ was damaged by the deliberate indifference of the Defendant CITY OF NEW YORK and the Defendant POLICE OFFICERS.
185. As a result of Defendants' impermissible conduct, Plaintiff AARON JIMENEZ demands judgment against defendants in a sum of money to be determined at trial.

NINTH CLAIM FOR RELIEF

FALSE ARREST / UNLAWFUL IMPRISONMENT UNDER 42 U.S.C. § 1983

(Roselina Jimenez against all defendants)

186. Plaintiff ROSELINA JIMENEZ repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
187. One or more of the defendant NYPD officers, including but not limited to Defendant MARTE handcuffed and arrested Plaintiff ROSELINA JIMENEZ.
188. The arrest was made in the absence of a warrant for the arrests.
189. The arrest was made in the absence of probable cause for the arrests.
190. The defendant NYPD officers arrested plaintiff ROSELINA JIMENEZ without having exigent circumstances for doing so.
191. There was no other authority for the arrest of plaintiff ROSELINA JIMENEZ.
192. Plaintiff ROSELINA JIMENEZ was conscious of the arrest.
193. Plaintiff ROSELINA JIMENEZ did not consent to the arrest.
194. As a result, plaintiff ROSELINA JIMENEZ was damaged, harmed and injured, and seeks compensation in an amount to be determined at trial.

TENTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983
(Roselina Jimenez against all defendants)

195. Plaintiff ROSELINA JIMENEZ repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
196. The defendant NYPD officers, despite knowing that neither reasonable nor probable cause existed to arrest and prosecute ROSELINA JIMENEZ for assaulting OCHOA or for any other crime, defendants fabricated and falsified evidence, individually and in concert, to cause ROSELINA JIMENEZ to be wrongfully arrested and prosecuted for those crimes.
197. The defendant NYPD officers lacked probable cause to initiate the prosecution of ROSELINA JIMENEZ and the prosecution of ROSELINA JIMENEZ was procured by fraud, perjury, and the fabrication and suppression of evidence.
198. False and fabricated evidence was given by defendant NYPD officers to the Bronx County District Attorney's Office.
199. The defendant NYPD officers knew or were deliberately and recklessly indifferent to the truth that probable cause did not exist to arrest and prosecute ROSELINA JIMENEZ, including but not limited to the fact that the defendant NYPD officers fabricated their accounts of their interactions with ROSELINA JIMENEZ in charging paperwork.
200. The defendant NYPD officers prosecuted ROSELINA JIMENEZ regardless of the fact that they possessed evidence that she was innocent and had not committed any crime.
201. The defendant NYPD officers' conduct was critical to the continued prosecution of ROSELINA JIMENEZ and they knew, or in the absence of their deliberate and reckless indifference, should have known would cause ROSELINA JIMENEZ prosecution to continue.
202. On October 11, 2017, the prosecution terminated in ROSELINA JIMENEZ's favor when the Bronx County District Attorney's Office dropped all charges against her.
203. The defendant NYPD officers' actions to deprive ROSELINA JIMENEZ of her liberty without probable cause were in violation of clearly established constitutional law, and no reasonable police officer in 2015 to 2017 would have believed that the defendants' actions were lawful.
204. As a direct and proximate result of the defendant NYPD officers' actions, ROSELINA JIMENEZ was wrongly prosecuted for two and a half years and suffered the other grievous and continuing injuries and damages as set forth above.
205. Accordingly, plaintiff ROSELINA JIMENEZ demands judgment against defendants in a sum of money to be determined at trial.

ELEVENTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER NEW YORK STATE LAW
(Roselina Jimenez against all defendants)

206. Plaintiff ROSELINA JIMENEZ repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
207. By the actions described above, each and all of the defendant NYPD officers and supervisory defendants, jointly and severally, acting in concert with each other and with additional persons for whose acts they are liable, initiated, continued and/or caused the initiation or continuation of, criminal proceedings against Plaintiff Mrs. Jimenez.
208. The criminal proceedings terminated in Plaintiff Mrs. Jimenez's favor.
209. There was no probable cause for the commencement or the continuation of the criminal proceedings.
210. The defendant police officers and supervisory defendants acted with actual malice.
211. The defendant police officers and supervisory defendants were at all times agents, servants, and employees acting within the scope of their employment by the Defendant City and the NYPD, which are therefore responsible for their conduct.
212. The Defendant City, as the employer of the defendant police officers, is responsible for their wrongdoing under the doctrine of respondeat superior.

TWELFTH CLAIM FOR RELIEF
DENIAL OF THE RIGHT TO A FAIR TRIAL 42 U.S.C. § 1983
(Roselina Jimenez against all defendants)

213. Plaintiff ROSELINA JIMENEZ repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
214. By deliberately manufacturing false evidence against ROSELINA JIMENEZ, including police reports containing the defendant police officers' own fabricated and falsified accounts that ROSELINA JIMENEZ had committed crimes and/or offenses, including that she had struck OCHOA in the face with an closed fist multiple times, and forwarding that fabricated evidence to prosecutors, the defendant NYPD officers caused ROSELINA JIMENEZ to be arrested, detained, charged, and prosecuted, in violation of ROSELINA JIMENEZ's rights, pursuant to the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, to due process of law and to a fair trial, and are liable to plaintiff under 42 U.S.C. § 1983, for compensatory and punitive damages.
215. Accordingly, ROSELINA JIMENEZ demands judgment against Defendants in a sum of money to be determined at trial.

THIRTEENTH CLAIM FOR RELIEF
MALICIOUS ABUSE OF PROCESS under 42 U.S.C. § 1983
(Roselina Jimenez against all defendants)

216. Plaintiff ROSELINA JIMENEZ repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
217. Defendants issued criminal process against plaintiff ROSELINA JIMENEZ by causing her arrest and prosecution in Bronx Criminal Court.
218. Defendants caused plaintiff ROSELINA JIMENEZ to be arrested and prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to avoid discipline for their abuse of authority and acts of brutality, and thereby violated plaintiff Aaron Jimenez's right to be free from malicious abuse of process.
219. Accordingly, ROSELINA JIMENEZ demands judgment against defendants in a sum of money to be determined at trial.

FOURTEENTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983
(Roselina Jimenez against all defendants)

220. Plaintiff ROSELINA JIMENEZ repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
221. Defendants roughly seized and handcuffed plaintiff ROSELINA JIMENEZ without probable cause for her arrest.
222. Defendants punched plaintiff ROSELINA JIMENEZ in her face, forcefully grabbed and seized her, placed her in a headlock, threw her onto the ground, and handcuffed her in an unreasonably tight manner without probable cause for her arrest, in the absence of need for such action and force.
223. The level of force employed by Defendants against plaintiff ROSELINA JIMENEZ was objectively unreasonable.
224. The force employed by Defendants against plaintiff ROSELINA JIMENEZ did not advance any proper governmental objective.
225. As a result of the aforementioned conduct, plaintiff ROSELINA JIMENEZ suffered and sustained serious physical injuries and severe pain.
226. As a result of Defendants' impermissible conduct, plaintiff ROSELINA JIMENEZ demands judgment against defendants in a sum of money to be determined at trial.

FIFTEENTH CLAIM FOR RELIEF
RETALIATION FOR FIRST AMENDMENT PROTECTED EXPRESSION UNDER
42 U.S.C. § 1983
(Roselina Jimenez against all defendants)

227. Plaintiff ROSALINA JIMENEZ repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
228. Plaintiff ROSALINA JIMENEZ was present and recording the police interaction with her husband, plaintiff AARON JIMENEZ, at the time of the incident in question.
229. The Defendant POLICE OFFICERS, including but not limited to Defendants OCHOA, MARTE, HENDERSON and the Defendant "JOHN DOE" NYPD Officers stopped and arrested Plaintiff ROSALINA JIMENEZ in order to retaliate against her for being present as an observer and/or documenting a OCHOA and HENDERSON's unlawful use of force against plaintiff AARON JIMENEZ with her cell phone.
230. Defendant MARTE and/or other defendant police officers punched plaintiff ROSELINA JIMENEZ in her face, forcefully grabbed and seized her, placed her in a headlock, threw her onto the ground, and handcuffed her in an unreasonably tight manner without probable cause for her arrest, in the absence of need for such action and force, in order to retaliate against her for being present as an observer and/or documenting a OCHOA and HENDERSON's unlawful use of force against plaintiff AARON JIMENEZ with her cell phone.
231. The Defendant POLICE OFFICERS, including but not limited to Defendants OCHOA, MARTE, HENDERSON and the Defendant "JOHN DOE" NYPD Officers stopped, arrested and used force against Plaintiff ROSALINA JIMENEZ in order to retaliate against her and to chill and deter her from further First Amendment protected activity.
232. Plaintiff ROSALINA JIMENEZ was not engaged in any illegal activity of any kind or sort when the Defendant POLICE OFFICERS stopped and arrested her.
233. The Defendant POLICE OFFICERS stopped, arrested and used force against Plaintiff ROSALINA JIMENEZ in order to retaliate against her for lawfully exercising her First Amendment protected right to record the police performing their duties in a public place.
234. The actions of the defendant police officers heretofore described were designed to and did cause severe physical harm and psychological and emotional distress in direct retaliation for plaintiff ROSALINA JIMENEZ's exercise of her civil and constitutional rights of free speech, free expression and to record the police performing their public duties in a public place as guaranteed by First and Fourteenth Amendments to the United States Constitution.
235. As a result of Defendants' impermissible conduct, Plaintiff ROSALINA JIMENEZ demands judgment against Defendants in a sum of money to be determined at trial.

SIXTEENTH CLAIM FOR RELIEF
PRIVACY PROTECTION ACT – 42 U.S.C. § 2000aa, et seq.
(Aaron Jimenez and Roselina Jimenez against all defendants)

236. Plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

237. One or more of the individual-defendants, while acting within the course and scope of their employment and under color of law, destroyed documentary materials and/or work product materials which the defendant NYPD officers reasonably believed or should have reasonably believed plaintiffs intended to use to disseminate the above-described incident to members of the public.

238. As a result of Defendants' impermissible conduct, Plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ demand judgment against Defendants in a sum of money to be determined at trial.

SEVENTEENTH CLAIM FOR RELIEF
FAILURE TO INTERVENE under 42 U.S.C. § 1983
(Aaron Jimenez and Roselina Jimenez against all defendants)

239. Plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

240. The defendant police officers officers, including but not limited to Defendants OCHOA, HENDERSON, MARTE, OTERO, ROJAS, LOMBARDO, and John Does 1 through 10 all had an affirmative duty to intervene on Plaintiffs' behalf to prevent the violation of their constitutional rights by the other defendant NYPD officers.

241. The defendant police officers failed to intervene on Plaintiffs' behalf to despite having had realistic opportunities to do so.

242. The defendant police officers failed to intervene on Plaintiffs' behalf despite having substantially contributed to the circumstances within which Plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ's rights were violated by their affirmative conduct.

243. As a result of the aforementioned conduct of the defendant police officers, Plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ's constitutional rights were violated.

244. As a result, Plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ were damaged, injured and harmed, and seek compensation in an amount to be determined at trial.

EIGHTEENTH CLAIM FOR RELIEF
SUPERVISORY LIABILITY under 42 U.S.C. § 1983
(Aaron Jimenez and Roselina Jimenez against CITY and supervisory defendants)

245. Plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

246. The supervisory defendants personally caused plaintiffs' constitutional injuries by being deliberately or consciously indifferent to the rights of others in failing to properly supervise, train, and discipline their subordinate employees.

247. As a result, Plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ were damaged, injured and harmed, and seek compensation in an amount to be determined at trial.

NINETEENTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983
ARISING FROM UNCONSTITUTIONAL MUNICIPAL POLICES RELATING TO
THE CITY'S CUSTOM, PRACTICE, AND POLICY OF FAILING TO DISCIPLINE
POLICE OFFICERS WHO FABRICATE EVIDENCE, PROVIDE PERJURIOUS
TESTIMONY, AND USE EXCESSIVE FORCE
(Aaron Jimenez and Roselina Jimenez against defendant CITY)

248. Plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

249. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

250. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, a) using excessive force against arrestees who are already handcuffed; b) using excess force against individuals who were lawfully filming / documenting officers' interactions with other individuals in public places; and c) fabricating their account of their interactions with arrestees in official police paperwork in an attempt to justify their violation of said arrestees' constitutional right.

251. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ.

252. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ as alleged herein.

253. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD, Plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ were unlawfully arrested and detained.

254. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiffs' constitutional rights.

255. All of the foregoing acts by defendants deprived plaintiffs of federally protected rights, including, but not limited to, the right:

A. Not to be deprived of liberty without due process of law;

B. To a fair trial;

C. To be free from false evidence being created by the police to charge crimes and

- D. To be free from destruction of evidence that would prove their innocence and that they were victims of police abuse;
- E. Not to have excessive force imposed upon them;
- F. To be free from malicious abuse of process.

256. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in below:

- A. Corey Avent v. City of New York, United States District Court, Eastern District of New York, 04 CV 2451;
- B. Reginald McMillan v. City of New York, United States District Court, Eastern District of New York, 04 CV 3990;
- C. Michael A. Smith v. City of New York, United States District Court, Eastern District of New York, 04 CV 1045;
- D. William Springer v. City of New York, United States District Court, Southern District of New York, 05 Civ. 6845;
- E. Chasity Rivera v. City of New York, United States District Court, Southern District of New York, 05 Civ. 6769;
- F. Rafael Santana v. City of New York, United States District Court, Eastern District of New York, 06 Civ. 2411;
- G. Lakus Brown v. City of New York, United States District Court, Southern District of New York 07 Civ. 11186;
- H. Davidson Beltran v. City of New York, United States District Court, Southern District of New York (05 Civ. 6847);
- I. Kendall Taggart and Mike Hayes, *Secret NYPD Files: Officers Can Lie And Brutally Beat People—And Still Keep Their Jobs*, BUZZFEEDNEWS (March 5, 2018), available at: https://www.buzzfeed.com/kendalltaggart/secret-nypd-files-hundreds-of-officers-committed-serious?utm_term=.qgeB84Kbm#.spNw05P8E2;
- J. Joseph Goldstein, 'Testilying' by Police: A Stubborn Problem, N.Y. Times (March 18, 2018), available at: <https://www.nytimes.com/2018/03/18/nyregion/testilying-police-perjury-new-york.html>.³;

257. As a result of Defendants' impermissible conduct, Plaintiffs were injured and harmed. Accordingly, Plaintiffs demand judgment against Defendants in a sum of money to be determined at trial.

TWENTIETH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983
ARISING FROM UNCONSTITUTIONAL MUNICIPAL POLICES RELATING TO
THE NYPD'S CUSTOM, PRACTICE, AND POLICY OF MAKING RETALIATORY
ARRESTS AGAINST PERSONS WHO LAWFULLY PHOTOGRAPH, DOCUMENT
OR RECORD POLICE ACTIVITY
(Aaron Jimenez and Roselina Jimenez against defendant CITY)

² Article incorporated by referenced herein, including all of its factual allegations and all of the allegations and findings in every case and internal investigation upon which it is based are incorporated in full as if fully set forth and pleaded herein.

³ Article incorporated by referenced herein, including all of its factual allegations and all of the allegations and findings in every case and internal investigation upon which it is based are incorporated in full as if fully set forth and pleaded herein. Because Court Rules (22 NYCRR § 202.5[a]) authorize the County Clerk to reject filings for various reasons, readers should be aware that documents bearing this legend may not have been accepted for filing by the County Clerk.

d. August 4, 2012 / Robert Stolarik

Photographer Robert Stolarik, who worked regularly for The New York Times for more than a decade, was charged with obstructing government administration and resisting arrest after taking photographs of a brewing street fight at McClellan Street and Sheridan Avenue in the Bronx. Mr. Stolarik was taking photographs of the arrest of a teenage girl about 10:30 p.m., when a police officer instructed him to stop doing so. Mr. Stolarik said he identified himself as a journalist for The New York Times and continued taking pictures. A second officer appeared, grabbed his camera and "slammed" it into his face, he said. The arresting officer was later indicted for falsifying statements surrounding Mrs. Stolarik's arrest. Russ Buettner, *Officer Is Indicted on Charges of Lying About Photographer's Arrest*, The New York Times (Aug. 26, 2013), <http://www.nytimes.com/2013/08/27/nyregion/officer-is-indicted-on-charges-of-lying-about-photographers-arrest.html>.

e. September 17, 2012 / Christopher Faraone / Faraone v. City of New York et al, 13 CV 09074 (TPG) (S.D.N.Y.)

Christopher Faraone, a journalist, was photographing a public demonstration at One Chase Manhattan Plaza when NYPD officers tackled, battered and arrested him. One of the officers directed him to cease his reporting activities within New York City.

f. September 15-17, 2012 / Julia Reinhart, Charles Meacham, and John Knefel

Five photojournalists reporting on Occupy Wall Street protesters were arrested in course of their reporting. One photographer was arrested after attempting to take a picture of an officer giving a dispersal order on a sidewalk. Another was forced to the ground and detained, while another was shoved and blocked from taking a photo by a Lieutenant in the NYPD's Legal Bureau. Christopher Robbins, *NYPD's pattern of harassing, arresting journalists continues*, Gothamist (Sept. 19, 2012) http://gothamist.com/2012/09/19/nypds_harassment_of_journalists_con.php.

g. December 12, 2011 & March 15, 2012 / Paul Sullivan, John Knefel and Justin Wedes / Rodriguez v. Winski, 12 CV 3389 (NRB) (S.D.N.Y.)

On December 12, 2011, Paul Sullivan, John Knefel and Justin Wedes, citizen reporters who were documenting protest activities and police response to same at the Winter Garden, a publicly accessible open place, were grabbed, pulled to the ground and arrested without warning or probable cause by the NYPD. On March 15, 2012, Mr. Wedes was again threatened with arrest for the same legal activity.

h. March 2012 / Unknown

In March of 2012, a cameraman from WABC-TV was struck by an officer at crime scene for unknown reasons. Carlos Miller, *NYPD Cop Assaults News Videographer At Crime Scene*, Photography Is Not A Crime (March 22, 2012) <http://photographyisnotacrime.com/2012/03/22/nypd-cop-assaults-news-videographer-at-crime-scene/>

i. November 27, 2012 / Angel Zayas / Zayas v. Kelly, 13 CV 08808 (JMF) (S.D.N.Y.)

On November 27, 2012, a freelance photographer, Angel Zayas, was arrested for photographing officers effect an unrelated arrest in Grand Central Terminal. Daniel Beekman, *Photographer trying to shoot stop and frisk sues NYC over police harassment*, New York Daily News (December 13, 2013) <http://www.nydailynews.com/news/justice-story/photog-shooting-frisking-sues-nyc-harassment-article-1.1546548>

j. January 16, 2013 / Shimon Gifter

This is a copy of a pleading filed electronically pursuant to New York State court rules (22 NYCRR §202.5-b(d)(3)(i)) which, at the time of its filing, had not yet been reviewed and approved by the County Clerk. Because court rules (22 NYCRR §202.5(d)) authorize the County Clerk to reject filings for various reasons, readers should be aware that documents bearing this legend may not have been accepted for filing by the County Clerk.

damaged after photographing officers stopping and frisking several young men. The photographer was also handcuffed and held up against a wall before being released with a warning.

Boruch Shubert, *Police Brutality in Midwood?*, The Jewish Voice (January 24, 2013) http://jewishvoiceny.com/index.php?option=com_content&view=article&id=2978:police-brutality-in-midwood&catid=106:international&Itemid=289; Sandy Eller, *Charedi Photographer Claims Handcuffed By NYPD After Videotaping Flatbush Police Stop*, Voz Iz Neias? (January 20, 2013). <http://www.vosizneias.com/122118/2013/01/20/brooklyn-ny-charedi-photographer-claims-handcuffed-by-nypd-after-videotaping-flatbush-police-stop/>.

k. April 19, 2013 / Justin Thomas / Thomas v. City of New York, 13 CV 6139 (SJ) (LB) (E.D.N.Y.)

A film student was arrested filming the exterior of the 72nd Precinct on April 19, 2013. Officers confiscated the student's cell phone, camera, and the camera's memory card, as well as his friend's memory card from a camera. Officers failed to remove the correct memory card from the friend's camera, however, leaving evidence of the encounter.

Concerned Citizens

l. February 9, 2005 / Lumumba Bandele, Djibril Toure and David Floyd / Bandele v. The City of New York, 07 CV 3339 (MGC) (S.D.N.Y.)

Lumumba Bandele, Djibril Toure and David Floyd were arrested while videotaping two arrests in Bedford-Stuyvesant, Brooklyn, on February 9, 2005. "In trying to stop the police from violating the rights of others, they had their rights violated," said Kamau Franklin, a lawyer with the Center for Constitutional Rights. *Metro Briefing: New York; Manhattan: Lawsuit Against The Police*, The New York Times (April 27, 2007), <http://query.nytimes.com/gst/fullpage.html?res=9C02E2DD123EF934A15757C0A9619C8B63>.

m. September 29, 2009 / Dennis Flores / Mesa v. City of New York, 09 CV 10464 (JPO) (S.D.N.Y.)

On September 29, 2009, Dennis Flores was arrested when he photographed NYPD officers using excessive force to disperse a crowd at a festival in the Bronx. At one point prior to Flores' arrest, an NYPD officer stated it was "illegal to photograph police."

n. October 17, 2010 / Anibal Ortiz / Ortiz v. City of New York, 11 CV 7919 (JMF) (S.D.N.Y.)

On October 17, 2010, Anibal Ortiz was arrested after he began recording NYPD officers, who asked him for identification, with a cell phone camera.

o. July 11, 2011 / Caroline Stern and George Hess / Stern v. City of New York, 12 CV 04863 (SAS) (S.D.N.Y.)

On July 11, 2011, Caroline Stern was arrested and her boyfriend George Hess, was tackled and arrested after he began video recording an encounter with officers in a subway station. Kathianne Boniello, *Couple handcuffed, jailed for dancing on subway platform: lawsuit*, The New York Post (July 8, 2012) <http://nypost.com/2012/07/08/couple-handcuffed-jailed-for-dancing-on-subway-platform-lawsuit/>

p. April 27, 2012 / John Runnells / Runnells v. City of New York, 13 CV 2904 (KBF) (S.D.N.Y.)

On April 27, 2012, John Runnells' camera was seized and its footage erased after he videotaped a police officer's check of his car. Mr. Runnells' court filing regarding the officers' actions after his camera was returned, and he was subsequently arrested. Once again, his camera

was seized and the footage deleted.

q. **June 5, 2012 / Hadiyah Charles / Charles v. City Of New York, 12 CV 06180 (SLT) (SMG) (E.D.N.Y)**

On June 5, 2012 a woman was pushed and arrested for using her phone to video record the stop-and-frisk of three unrelated young men on a public sidewalk. Rocco Parascandola, *Woman suing NYPD for wrongful arrest discovers that a key piece of evidence has mysteriously vanished from the Brooklyn stationhouse*, New York Daily News (October 17, 2013) <http://www.nydailynews.com/new-york/brooklyn/brooklyn-precinct-log-book-mystery-article-1.1487721>

r. **August 2012 / Unknown**

In August of 2012, a man was threatened with arrest for filming outside about 300 feet away from the security checkpoint at One Police Plaza. Carlos Miller, *NYPD Cop Fails at Intimidating Man From Video Recording Police Headquarters*, Photography Is Not A Crime (August 17, 2012) <http://photographyisnotacrime.com/2012/08/17/nypd-cop-fails-at-intimidating-man-from-video-recording-police-headquarters/>

s. **January 10, 2012 / Justin Sullivan / Rodriguez v. Winski, 12 CV 3389 (NRB)**

On January 10, 2012, Justin Sullivan was arrested for filming an Occupy Wall Street protest at Grand Central Terminal and his camera was confiscated. Later, Mr. Sullivan returned to the police precinct at the terminal to retrieve his camera and he was re-arrested. A witness reported an officer destroyed Mr. Sullivan's camera.

t. **March 2012 / Unknown**

In March of 2012, an individual video recording officers beating another man with batons was told to leave the scene and threatened with pepper spray. Carlos Miller, *NYPD Takes Break From Beating Man To Threaten Videographer With Pepper Spray* (March 18, 2012) <http://photographyisnotacrime.com/2012/03/18/nypd-takes-break-from-beating-man-to-threaten-videographer-with-pepper-spray/>.

u. **June 14, 2012 / Dick George / George v. The City of New York, 15 CV 3108 (KAM)(SMG) (E.D.N.Y.)**

On June 14, 2012, Dick George was arrested for filming police search several youths on the street in Brooklyn, and telling them to get the officers' badge numbers. John Marzulli, *Exclusive: \$125G deal over vid of stop-frisk*, N.Y. DAILY NEWS (August 18, 2014), <http://www.nydailynews.com/news/national/125g-deal-vid-stop-frisk-article-1.1906965>.

v. **September 28, 2012 / Santos Bobet / Bobet v. The City of New York, 14 CV 1396 (WHP)(JLC) (S.D.N.Y)**

On September 28, 2012, at approximately 8:55 p.m., Santos Bobet observed someone being arrested near the Whitlock Avenue 6 Station in the Bronx. After beginning to videotape the arrest, he was arrested by Officer Kelvin Prado, who then along with his partner deleted the video footage.

w. **March 13, 2013 / Ed Garcia Conde**

Ed Garcia Conde was arrested on March 13, 2013 after he used his phone to video record a police officer's interaction with another man. Ben Yakas, *Video: Bronx Man Hauled To Jail For Exercising Right To Videotape Cops*, GOTHAMIST (March 16, 2013) http://gothamist.com/2013/03/16/video_bronx_man_hauled_to_jail_for.php.

frisks at a car checkpoint. Christina Gonzalez and Matthew Swaye said they were returning from a Bronx mall at about 10:30 p.m. when they noticed several vehicles stopped and Gonzalez took out her camera to begin filming. Jeff Mays, *'Professional Agitators' on NYPD 'Wanted' Flier Arrested After Filming Stop*, DNA Info (May 21, 2013), <http://www.dnainfo.com/new-york/20130521/central-harlem/professional-agitators-on-nypd-wanted-flier-arrested-after-filming-stop>.

y. August 26, 2013 / Jonathan Harris

NYPD officers arrested a Bronx teenager, Jonathan Harris, after he was filming the officers attack and threaten two young girls in a Bronx park. The teenager told the officers to leave the girls alone and began filming them with his phone. The officers began chasing him, tackled him and punched him before arresting him. Jennifer Cunningham, *Teens say they were beaten by cops in Bronx park*, New York Daily News (Aug. 29, 2013), <http://www.nydailynews.com/new-york/bronx/teens-mauled-cops-article-1.1440394#ixzz2eVh68jgw>.

z. September 19, 2013 / Sean Basinski / Basinski v. The City of New York, 14 CV 1057 (LTS) (S.D.N.Y.)

On September 19, 2013, a lawyer, Sean Basinski was arrested while using a phone to records police during a rally in front of Midtown North Precinct police station on West 54th Street. Colin Moynihan, *Street Vendors Protest Treatment by Police*, The New York Times (October 2, 2013), http://www.nytimes.com/2013/10/03/nyregion/street-vendors-protest-treatment-by-police.html?_r=0.

aa. June 5, 2013 / Rahul Saksena / Seksena v. The City of New York, 14 CV 5129 (JBW) (LB) (E.D.N.Y.)

On June 5, 2014, at approximately 10:00 p.m., Mr. Saksena was arrested in retaliation for filming a civilian police interaction in the Bushwick section of Brooklyn.

bb. September 25, 2013 / Debra Goodman / Goodman v. The City of New York, 14 CV 5261 (CM) (S.D.N.Y.)

Debra Goodman was arrested by two NYPD officer for using her cellphone to videotape an interaction between the officers and a homeless woman.

cc. March 12, 2014 / Jason Disisto / Disisto v. The City of New York, 15 CV 3296 (GHW) (S.D.N.Y.)

Jason Disisto was arrested by two NYPD officers for using his cellphone to videotape the officers performing a search on a public sidewalk. Thereafter, on December 22, 2015, NYPD Officer Johathan Munoz was indicted by the Manhattan District Attorney's Office for falsely arresting Disisto and lying about it.

Nathan Tempey, *NYPD Cop Indicted For Falsely Arresting Man Who Recorded Him*, Gothamist (Dec. 22, 2015),

http://gothamist.com/2015/12/22/cop_watch_season_2_the_reckoning.php.

dd. March 8, 2015 / David Rivera / Rivera v. The City of New York, 16 CV 3296 (PKC)(RER) (E.D.N.Y.)

On March 8, 2015, David Rivera was inside of his apartment when he heard a loud commotion in the hallway. When he opened his apartment door and saw numerous NYPD officers violently arresting his neighbor, he began filming the interaction on his cell phone. In response, NYPD Sergeant Diana Pichardo pointed her gun at Rivera, took his cell phone, and falsely arrested and charged him with numerous felonies, each of which was dismissed at arraignment.

John Marzulli, *NYPD sergeant aims gun at man recording her, busts into his home*, N.Y.

ee. May 20, 2016 / Eric Worell

On May 20, 2016, NYPD Officer Risel Martinez pointed his gun at 19-year-old Jahnico Harvey, who was filming him violently arrest a man in an apartment building. After the first arrest, another cell phone video shows Officer Martinez walking up to Harvey, punching him in the face, throwing him on the ground and arresting him.

John Marzulli, *NYPD cop who pulled gun, punched man recording him at Harlem apartment building a 'good' officer, colleagues say*, N.Y. DAILY NEWS (May 21, 2016), <http://www.nydailynews.com/new-york/nypd-pulled-gun-punched-harlem-man-good-officer-article-1.2645211>.

ff. June 11, 2016 / Threstan Ralph

On June 11, 2016, Threstan Ralph was arrested for filming five NYPD officers violently arresting a woman on Glenwood Road.

John Marzulli, *NYPD accused of arresting man for recording video of cops*, N.Y. DAILY NEWS (June 16, 2016), <http://www.nydailynews.com/new-york/nypd-accused-arresting-man-recording-video-cops-article-1.2675620>.

263. As a result of this ongoing, widespread practice of NYPD officers interfering with and chilling individuals' First Amendment rights, the City entered into a consent decree in which it stipulated that "it is the policy of the New York City Police Department ... that when a person (or persons) is detained, stopped or arrested in public areas, a person or persons not involved in the conduct for which the first person is stopped or arrested may remain in the vicinity of the stop of arrest as an onlooker or onlookers, subject to the safety of the person stopped . . . the general public, and officers ... None of the following constitutes probable cause for arrest or detention of an onlooker ... (c) Taking photographs; (d) Remaining in the vicinity of the stop or arrest." Stipulation and Order, *Black v. Codd*, No. 73 Civ. 5283, 12 (S.D.N.Y. June 1, 1977). The NYPD's practice and custom of interfering with the rights of individuals who seek to record police activity misconstrues, or in the alternative, violates this consent decree.

264. In 2014, the NYPD put out a FINEST Message (the "FINEST Message") addressing "Recording of Police Action by the Public." The FINEST Message states, "Members of the service are reminded that members of the public are legally allowed to record (by video, audio, or photography) police interactions. These interactions include arrest and other situations." It further prohibits NYPD officers from "interfer[ing] with a person's use of recording devices to record police interactions." Finally, it acknowledges, "intentional interference such as blocking or obstructing cameras or ordering the person to cease ... violates the First Amendment." FINEST Message from Chief of Department, NYPD to All Commands, SER#: 9881632 (August 6, 2014).

265. Upon information and belief, the NYPD has not instituted any training, monitoring, or supervision to ensure that officers comply with the consent decree and FINEST Message, and refrain from violating First Amendment rights through suppression of videotaping. Upon information and belief, the current training NYPD officers receive does not sufficiently train, monitor, supervise or discipline officers to identify circumstances under which officers are the NYPD's practice and custom of interfering with the rights of individuals who seeks to record police activity violates this FINEST Message.

266. The City's failure to train, monitor, supervise, and discipline NYPD officers to respect individuals' First Amendment rights amounts to deliberate indifference to the constitutional violations committed by the NYPD against individuals including plaintiff ROSALINA JIMENEZ. Given the ubiquity of cameras and smartphones, the City should

have anticipated that individuals would attempt to record police performing their official duties in public places. As of the date of plaintiffs arrest the City knew, or should have known, that NYPD officers had a history of mishandling situations and committing constitutional violations where a member of the public attempts to record police activity.

267. The NYPD's practice and custom of interfering with individuals who, without interfering with police activity, record or attempt to record police officers is so persistent, widespread, and pervasive as to constitute a custom or usage and imply the constructive knowledge or acquiescence of the City and its policymakers. The numerous instances of abuse, a small number of which are described above, particularly given that a number of lawsuits have been filed against the City, the NYPD, and NYPD officers demonstrates that the City is, or should have been, aware of the constitutional violations committed by the NYPD. The constitutional violations are so numerous, persistent, and pervasive that the need for corrective action is obvious, and the City's failure to take any such action constitutes deliberate indifference to the violations. This deliberate indifference to the NYPD's widespread deprivation of constitutional rights can be considered a policy, practice, or custom of the City.
268. The City, through its policymakers and agents, condoned, permitted, encouraged, and/or ratified the NYPD practices and customs challenged herein, which allowed NYPD officers to disregard and violate plaintiff ROSALINA JIMENEZ's exercise of her First Amendment rights when she attempted to record NYPD officers performing their official duties on April 19, 2015.
269. Furthermore, the City, through its policymakers and agents, has been deliberately indifferent to the rights of individuals, such as plaintiff ROSALINA JIMENEZ, who come into contact with NYPD officers as they record or attempt to record the officers. The City failed to adequately train, monitor, supervise, and discipline its officials, employees, and agents, including the NYPD and the individual NYPD defendants named herein specifically, to respect and not violate the First Amendment rights of individuals such as Mrs. Jimenez. As a result of the City's failure, Mrs. Jimenez's First Amendment rights were violated when she was punched in the face and arrested due to her attempt to record police activity.
270. The practices and customs of the NYPD condone or tacitly authorize NYPD officers—acting as employees and agents of the City—to engage in unconstitutional seizures of cameras being used for First Amendment activity. These practices and customs caused Mrs. Jimenez to suffer a violation of her constitutional rights and were the moving force behind the deprivation of Mrs. Jimenez's constitutional rights.
271. Plaintiff ROSALINA JIMENEZ'S arrest and prosecution effectively chilled and infringed upon her exercise of her First Amendment rights. Thus, Plaintiff Mrs. Jimenez suffered injury as a result of the Defendant's conduct.
272. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed. Accordingly, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

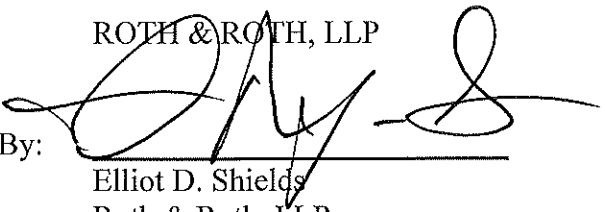
WHEREFORE, plaintiffs ROSALINA JIMENEZ and AARON JIMENEZ demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of

Dated: New York, New York
April 5, 2018

Respectfully Submitted:

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By:



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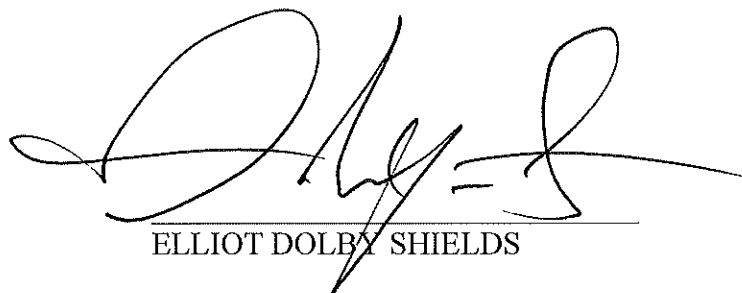
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ATTORNEY'S VERIFICATION

ELLIOT DOLBY SHIELDS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am associated with Roth & Roth LLP, attorneys for plaintiffs herein, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 5, 2018



ELLIOT DOLBY SHIELDS